

24STCV14692 24STCV14692

County: los-angeles

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311 (formerly 19)

Tentative

Ruling

24STCV14692

CHANG

SOO LEE, AN INDIVIDUAL v. GENERAL MOTORS, LLC

June

23, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF'S MOTION FOR ATTORNEY FEES, COSTS AND EXPENSES.

RULING:

The Court grants the Motion,

as prayed.

Plaintiff

CHANG SOO LEE is awarded attorneys' fees, costs and expenses, in the total

amount of \$26,102.00 against Defendant GENERAL MOTORS, LLC.

I.

BACKGROUND

On June 12, 2024, CHANG

SOO LEE (Plaintiff) filed a Lemon Law Complaint against GENERAL MOTORS, LLC. (Defendant).

Plaintiff alleged that

his 2021 Chevrolet Express Cargo Van, manufactured by Defendant, suffered from engine,

transmission, and other defects that Defendant has been unable to repair within

a reasonable number of attempts. Plaintiff further alleged that Defendant knew

that the vehicle suffered from the defects yet had refused to repurchase it.

On May 15, 2026, pursuant

to the Song-Beverly Consumer Warranty Act, Plaintiff filed a Motion for an

order providing for (1) attorneys' fees in the amount of \$22,587.50 (\$18,787.50 for Benjeman Beck, and \$3,800.00 for Misoo Choi), (2) \$2,500.00 in reply-related attorneys' fees, and (3) costs and expenses in the amount of \$1,014.50, making a total of \$26,102.00.

Defendant advocates

amount reductions to those reasonably incurred, reasonable hourly rates and denying unrecoverable costs and expenses—i.e., Motion to Enforce Settlement and jury fees).

II.

LEGAL STANDARD

As to Song–Beverly

warranty claims, prevailing buyers have the burden to show that the fees incurred were reasonably necessary to the conduct of the litigation and were reasonable in amounts. (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 998 (*Doppes*).)

“ ‘In challenging

attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments

that fees claimed are excessive, duplicative, or unrelated do not suffice.’ ” (*Lunada Biomedical v. Nunez* (2014) 230

Cal.App.4th 459, 488. Accord, *Etcheson v. FCA US LLC* (2018) 30

Cal.App.5th 831, 848.)

“The Song-Beverly Act’s

attorney fee provision ““requires the trial court to make an initial

determination of the actual time expended; and then to ascertain whether under

all the circumstances of the case the amount of actual time expended, and the

monetary charge being made for the time expended are reasonable.” (Tidrick

v. FCA US LLC (2025) 112 Cal.App.5th 1147, 1158.) Under the Song-Beverly

Act, the question whether attorneys’ fees were reasonably incurred may depend

on circumstances including, “factors such as the complexity of the case and

procedural demands, the skill exhibited and the results achieved.” (Goglin

v. BMW of North America, LLC (2016) 4 Cal.App.5th 462, 470. The appellate

court reviews awards of attorney fees under Civil Code section 1794,

subdivision (d), for abuse of discretion. (Doppes, *supra*, 174 Cal.App.4th at p. 998.)

Civil Code Section

1794(d) requires a court to base an attorneys’ fee award on actual time

expended on the case, and reasonably incurred, as to time spent, and amount,

under all circumstances including complexity of the case, procedural demands,

skill exhibited, and results achieved. (*McKenzie v. Ford Motor Co.*

(2015) 238 Cal.App.4th 695, 698, 703.) “The ‘plain wording’ of section 1794,

subdivision (d) requires the trial court to 'base' the prevailing buyer's

attorney fee award 'upon actual time expended on the case, as long as such fees

are reasonably incurred—both from the standpoint of time spent and the amount

charged.'" (Warren v. Kia Motors Am., Inc. (2018) 30 Cal.App. 5th 24,

35. Accord Robertson v. Fleetwood Travel Trailers of California, Inc.

(2006) 144 Cal.App.4th 785, 817.)

III.

ANALYSIS

Plaintiff's Motion is

made on grounds including that Plaintiff is the statutory prevailing party

after, pursuant to Code of Civil Procedure section 998, and Defendant agreed to

repurchase in the sum of \$29,000.00. In support of fees, costs and expenses,

Plaintiff adds details about discovery and settlement efforts. And the hourly

rates claimed are \$575.00 and \$600.00.

The Opposition sets forth arguments about

reducing some amounts, for a routine breach-of-warranty case involving basic

discovery and no complex or novel issues, and resulting in settlement before trial.

Initially,

the Court addresses issues of law, and recognizes some case law that does not

fully support issues of law argued in the Opposition.

First,

there is a dearth of California law about considering templates usage in deciding motions for attorneys' fees. "A legal proposition asserted without apposite authority necessarily fails." (*People v. Taylor* (2004) 119 Cal.App.4th 628, 643.) A trial court's referencing counsel's use of templates, including reasoning that fewer attorneys were necessary in a case, was affirmed. (See *Morris v. Hyundai Motor Am.* (2019) 41 Cal.App.5th 24, 31-33, 39 ["asserted that even though her counsel used 'form documents' in the case, work was necessary to conform those templates to the actual facts of this case."].)

A federal Court of Appeals rejected an argument that a trial court judge should have reduced attorneys' fees on the grounds of counsel's use of a form template for drafting a complaint, where other evidence nonetheless supported the finding of a total reasonable amount. (See *Laney v. BBB Logistics, Inc.* (11th Cir. 2021) 844 F. App'x 203, 209.)

Second,

the Song-Beverly Act requires allowing fees and costs "determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution" of the case, which is reviewed under the abuse of discretion standard. (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4

Cal.App.4th 807, 813. Cf. *Dominguez v. Am. Suzuki Motor Corp.* (2008) 160

Cal.App.4th 53, 60 [section 1794, subdivision (d) conditions an attorney fees

award on prevailing in an action, and includes pre-commencement or

post-commencement of cases].)

Third,

for purposes of determining a reasonable hourly rate for attorneys' fees, the

"relevant 'community' is generally based on where the services are rendered,

i.e., where the court is located." (*Tidrick v. FCA US LLC* (2025) 112

Cal.App.5th 1147, 1157.) Judges are not required to award the lower market rate

of attorneys' fees, and may have discretion to determine that the actual rate

charged was reasonable. (*Syers Properties*

III, Inc. v. Rankin (2014) 226 Cal.App.4th 691, 702.)

Fourth,

clerical type expenses are recoverable under some case law. As to parties

prevailing in an action on a contract with terms for recovery of attorney fees

and costs, counsel's disbursement costs, such as secretarial, copying,

telephone, expert fees and travel, are recoverable as a part of attorney fees,

"if they represent expenses ordinarily billed to a client and are not included

in the overhead component of counsel's hourly rate." (*Bussey v. Affleck* (1st Dist. 1990) 225 Cal.App.3d 1162, 1166-1167

("Bussey"), abrogated by *Hsu*

v. Semiconductor Sys., Inc. (2005) 126 Cal.App.4th 1330, 1342 [noting split

of authority]. But see, e.g., Benson v. Kwikset Corp. (4th Dist.

2007) 152 Cal.App.4th 1254, 1283 [recognizing split of authority]; Fairchild

v. Park (2d Dist. 2001) 90 Cal.App.4th 919, 930 [disagreeing with Bussey

opinion, and following view that attorney fees and expenses are distinctly

different by statute]; Robert L. Cloud

& Assocs., Inc. v. Mikesell (1st Dist. 1999) 69 Cal.App.4th 1141, 1154

["attorney fees do not include expenses...."].) Support services, including

expenses related to secretaries and paralegals, are includable in an award for

attorneys' fees. (City of Oakland v.

McCullough (1996) 46 Cal.App.4th 1, 7.) Where there is a split of

authority, trial courts have discretion to choose between the decisions. (Auto Equity Sales, Inc. v. Superior Court (1962)

57 Cal.2d 450, 456.)

Fifth,

anticipated attorneys' fees (e.g., replies), estimated before they are incurred,

are awardable, unless there is opposing evidence supporting judges' findings

that the fees are speculative or incredible. (Menezes v. McDaniel (2019)

44 Cal.App.5th 340, 349.)

Sixth,

"in enacting Civil Code section 1794, subdivision (d) the Legislature intended

the phrase 'costs and expenses' to cover items not included in " 'the detailed

statutory definition of 'costs' " set forth in Code of Civil Procedure section

1033.5." (Warren v. Kia Motors Am., Inc. (2018)

30 Cal.App.5th 24, 42, 43 ["it is indisputable that Warren 'reasonably

incurred' the \$5,882 cost of the trial transcripts 'in connection with the ...

prosecution of [the] action.' ").) The

Song-Beverly Warranty Act, "requires payment only of those costs and fees

'determined by the court to have been reasonably incurred by the buyer in

connection with the commencement and prosecution' of the underlying action." (Levy

v. Toyota Motor Sales, U.S.A., Inc. (1992) 4 Cal.App.4th 807, 813.)

Seventh,

parties must properly request the court to retain jurisdiction to enforce a

settlement and then courts may retain jurisdiction. (Sayta v. Chu (2017) 17 Cal.App.5th 960, 967; Hines v. Lukes (2008) 167 Cal.App.4th 1174, 1182; Hagan Engineering, Inc. v. Mills (2003)

115 Cal.App.4th 1004, 1010-1011; Wackeen

v. Malis (2002) 97 Cal.App.4th 429, 440, 441.)

Eighth,

Code of Civil Procedure, section 1033.5, subdivision (a)(1) provides for

recovering jury fees as costs. (Chaaban

v. Wet Seal, Inc. (2012) 203 Cal.App.4th 49, 58.)

Here, the Court finds

that Plaintiff's two filed declarations, supported by exhibits and specific

billing records, support all claimed fees, costs and expenses.

In contrast, the opposing

Declaration of NATALIE KESHISHIAN, filed June 9, 2026, at pages 1 through 3, is

unpersuasively limited to addressing (1) the Plaintiff's Complaint and

Defendant's Answer, (2) use of templates and content from other cases, (3) discovery

conducted, (3) settlement efforts, (4) counsel's conclusion that the Motion

content involves unreasonably excessive amounts given the nature of the case

and tasks performed, and (5) counsel's opinion based on experience that this

case was typical, routine, noncomplex, novel and usual. Attached to that

Declaration are over 600 pages of exhibits about discovery and filings in this

case, and some documents from other cases for comparison.

The Court finds that the

opposing evidence essentially confirms information that shows in the official

case docket and the discovery and settlement work described by Plaintiff, while

adding conclusory attorney opinions, which information collectively does not

support the advocated reductions.

IV.

CONCLUSION

The Court grants the Motion,

for reasons stated.